

Amendment No. 2 to SB0247

Haile
Signature of Sponsor

AMEND Senate Bill No. 247

House Bill No. 297*

by deleting all language after the enacting clause and substituting instead the following:

SECTION 1. Tennessee Code Annotated, Section 67-5-1005(a)(1) is amended by adding the following language immediately after the third sentence of the subdivision:

Property that is qualified as agricultural, owned by two (2) individuals, and held under the titles of tenancy by the entireties or of joint tenancy with right of survivorship, is deemed to have unchanged ownership upon the death of an owner if the property is retained by the other owner through a right of survivorship or upon the divorce of the owners if the property is retained by either owner through division and distribution of property in the divorce proceeding.

SECTION 2. Tennessee Code Annotated, Section 67-5-1006(a)(1) is amended by adding the following language immediately after the third sentence of the subdivision:

Property that is qualified as forest land, owned by two (2) individuals, and held under the titles of tenancy by the entireties or of joint tenancy with right of survivorship, is deemed to have unchanged ownership upon the death of an owner if the property is retained by the other owner through a right of survivorship or upon the divorce of the owners if the property is retained by either owner through division and distribution of property in the divorce proceeding.

SECTION 3. Tennessee Code Annotated, Section 67-5-1007(b)(1), is amended by adding the following language immediately after the third sentence of the subdivision:

Property that is qualified as open space land, owned by two (2) individuals, and held under the titles of tenancy by the entireties or of joint tenancy with right of

survivorship, is deemed to have unchanged ownership upon the death of an owner if the property is retained by the other owner through a right of survivorship or upon the divorce of the owners if the property is retained by either owner through division and distribution of property in the divorce proceeding.

SECTION 4. This act takes effect upon becoming a law, the public welfare requiring it.